

- (h) The planting of trees and shrubs as part of a Development Application in this centre should consider the NSW Land and Environment Court Planning Principle based on *Tenacity Consulting v Warringah [2004] NSWLEC 140* which provides general principles for the assessment of views and view sharing. Note: This does not apply to landscape works conducted outside of a Development Application.

3.1.11 Rose Bay North



Figure 60 Rose Bay North Centre

Existing Character and Built Form

The five retail and commercial clusters found along Old South Head Road accommodate approximately 110 shop front premises of which approximately 70 are within Waverley. The two clusters forming the Rose Bay Small Village contain a variety of uses that, when combined with the retail strips on the Woollahra side of the road, provide the daily needs of the local community.

Shop top housing is an important feature of Old South Head Road and provides housing diversity and affordability. This increases pedestrian activity and presence within the village.

Desired Future Character Objectives

- (a) To ensure an integrated approach and consistent treatment to the conservation of buildings of historic character.
- (b) To maintain and improve the continuity of awnings over the footpath.
- (c) To maintain Old South Head Road as the primary streetscape in the village with side streets as secondary frontages.
- (d) Maintain a good distinction between the mixed use sections of Old South Head Rd and residential side streets.